

SUMMARY: MOSZKOWSKI v. DEEPGULF — CHRONOLOGICAL ACCOUNT

In 2004, Marc Moszkowski, a French marine engineer and patent holder based in Houston, co-founded DeepGulf, Inc. with businessman Rustin Howard, on the basis of his own patented technology. Moszkowski holds over 46% of the equity, served as President, and was responsible for all technical and business development. Howard served as Chairman of the Board of Directors and was responsible for capital raising and for immigration sponsorship.

For the first three years, Howard raised no capital. Moszkowski received no salary, despite Howard's personal guarantee of \$120,000 annually to the Department of Homeland Security (DHS) under the terms of Moszkowski's H-1B visa. The funds later raised were applied to Howard's operating expenses, not to Moszkowski's work or to the development of the projects. The development phase was financed by Moszkowski's personal consulting income totaling approximately \$225,000, while the projects themselves were executed using the cash flow generated by the Timorese operating entity.

In 2007, Moszkowski developed a major offshore pipeline related opportunity in East Timor, traveling at his own expense. He secured meetings with the President, Prime Minister, and senior government officials of the Republic. Three contracts followed, totaling \$14.9 million, executed between 2008 and 2012, all successfully completed without involvement from Howard. Moszkowski received his first salary in 2008, but those salaries were discontinued in 2012 despite Howard's guarantee to DHS. Operations required Moszkowski to work in very remote and unsafe locations; he sustained injuries from floods, road collapse, violent assault, and an eighteen-day ship grounding on a coral reef. In 2011, he contracted potentially lethal Papua New Guinea malaria and was hospitalized in critical condition.

Under a profit-sharing structure implemented in the course of these operations, DeepGulf received 50.3% of the profits derived from Moszkowski's 33% interest in the Timorese operating entity, while the Timorese founders, holding 67%, received 49.7%.

However, DeepGulf subsequently claimed in 2018 entitlement to 100% of the Timorese operating entity's profits for the period 2008 to 2012, arguing retroactive entitlement to \$2,622,933.67 on the basis of its acquisition of that entity for \$100,001 in December

2012. This position encompassed all amounts distributed, including those paid to the Timorese founders, to DeepGulf, and to Moszkowski.

By February 2017, DeepGulf owed Moszkowski \$1,129,500 in unpaid salary and expense reimbursement, before interest.

In this context, litigation was then initiated in both France and Florida against Moszkowski. He successfully removed the Florida action to federal court on diversity of citizenship grounds, where he prevailed on the principal claims. However, the case was subsequently remanded to state court on grounds of destruction of said diversity. In state court, his request to appear remotely was denied at the opposing party's urging, despite seized assets and documented serious medical condition. He was held in default, and his defenses and counterclaims were stricken. A civil theft finding was entered based principally on a pre-suit demand letter, with no examination of the underlying transactions, resulting in a judgment of \$1,035,000 plus \$290,461.73 in interest. Further accounting for other counts remains pending.

A timely appeal is pending before Florida's First District Court of Appeal. A separate federal action was filed by Moszkowski in the Western District of New York in January 2026.

See:

[A CHRONOLOGICAL ACCOUNT OF EVENTS ACROSS THREE CONTINENTS](https://marc-moszkowski.github.io/Dockets/A%20Chronological%20Account.pdf)¹

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